

CIVIL PROCEDURE - SPECIFIC PERSONAL JURISDICTION

Contractual Contacts, Stream of Commerce, and Fair Play

Parties / Procedural History / Material Facts / Question Presented / Holding / Reasoning

PART I - CASE BRIEFS

1. Asahi Metal Industry Co. v. Superior Court

480 U.S. 102 (1987). Supreme Court of the United States. No. 85-693; argued November 5, 1986; decided February 24, 1987. Certiorari to the Supreme Court of California. O'Connor, J., announced the judgment. The judgment was unanimous; the minimum-contacts reasoning produced no majority.

Parties

Petitioner / cross-defendant: Asahi Metal Industry Co., Ltd., a Japanese corporation that manufactured tire-tube valve assemblies in Japan. **Real party in interest / cross-complainant:** Cheng Shin Rubber Industrial Co., Ltd., a Taiwanese corporation that incorporated Asahi valve assemblies into finished tire tubes and sought indemnification from Asahi.

Nominal respondent: the Superior Court of California for Solano County, whose assertion of personal jurisdiction Asahi challenged. **Original plaintiffs:** Gary Zurcher, the injured motorcycle driver, and claims arising from the death of his wife and passenger, Ruth Ann Moreno. Their product-liability claims had settled before the Supreme Court decided the jurisdictional dispute.

Procedural History

On September 23, 1978, Zurcher's motorcycle crashed in Solano County, California. In September 1979, Zurcher filed a California product-liability action against Cheng Shin and other entities. Cheng Shin filed a cross-complaint for indemnification against Asahi, the maker of the valve assembly inside Cheng Shin's tube. California Code of Civil Procedure § 410.10 authorizes jurisdiction to the limits permitted by the California and federal Constitutions.

Asahi specially challenged jurisdiction through a motion to quash service of summons. The parties submitted affidavits and documentary material directed to Asahi's sales, distribution knowledge, and California connections. On April 20, 1983, the Superior Court denied the motion, reasoning that Asahi conducted business internationally and could defend an international product claim.

Asahi petitioned the California Court of Appeal for extraordinary relief. That court issued a peremptory writ of mandate directing the Superior Court to quash service. It treated worldwide foreseeability of the component's ultimate destination as an insufficient basis for California jurisdiction. The California Supreme Court reversed and discharged the writ. *Asahi Metal Industry Co. v. Superior Court*, 39 Cal. 3d 35, 702 P.2d 543 (1985). It found awareness that components would reach California, plus an indirect economic benefit from California sales, constitutionally sufficient.

By this stage, Zurcher's claims against Cheng Shin and the other defendants had settled and were dismissed. The only surviving merits dispute was Cheng Shin's indemnity claim against Asahi. The U.S. Supreme Court granted certiorari, 475 U.S. 1044 (1986), reversed the California Supreme Court, and remanded. Part I recounted the case for all nine Justices. Eight Justices joined Part II-B's conclusion that jurisdiction failed the fair-play-and-substantial-justice inquiry. Justice Scalia joined the four-Justice minimum-contacts plurality and the judgment.

Material Facts

Asahi manufactured valve assemblies in Japan and sold them to Cheng Shin and other tire manufacturers. Its sales to Cheng Shin occurred in Taiwan, with shipment from Japan to Taiwan. Cheng Shin purchased 150,000 Asahi assemblies in 1978, 500,000 in 1979, 500,000 in 1980, 100,000 in 1981, and 100,000 in 1982. Sales to Cheng Shin represented 1.24 percent of Asahi's income in 1981 and 0.44 percent in 1982.

Cheng Shin sold finished tubes throughout the world and alleged that about twenty percent of its United States sales occurred in California. A Cheng Shin manager stated that the companies had discussed Cheng Shin's worldwide and U.S. sales and that Asahi understood that its assemblies would reach the United States and California. Asahi's president stated that the company understood its Taiwan sales as transactions that would be litigated outside California. The record contained no contract between Asahi and Cheng Shin.

A 1983 examination of one Solano County cycle store found about 115 tubes. Ninety-seven appeared to have been made in Japan or Taiwan; twenty-one valve stems carried Asahi's circled-A mark; twelve of those twenty-one appeared in Cheng Shin tubes. The store also held forty-one Cheng Shin tubes using other manufacturers' valve assemblies.

Asahi maintained its corporate operations, manufacturing, and sales outside California. It had no California office, agents, employees, or property; made no direct California sales; solicited no California business; created and controlled no distribution system for Cheng Shin's finished tubes; and used a standard valve design rather than a design adapted for California.

Question Presented

Two questions governed: (1) Does a foreign component manufacturer purposefully establish minimum contacts with California by regularly selling components to a foreign finished-product manufacturer while aware that some finished products will enter California? (2) Given the surviving indemnity dispute between Taiwanese and Japanese corporations, does California's exercise of jurisdiction satisfy traditional notions of fair play and substantial justice?

Holding

California lacked constitutional authority to adjudicate Cheng Shin's indemnity claim against Asahi. Eight Justices concluded that the international burden on Asahi, California's diminished regulatory interest after settlement of the California plaintiff's claim, Cheng Shin's limited showing of a California litigation interest, and the interests of foreign sovereigns made jurisdiction unreasonable. The Court unanimously reversed. The Justices produced three approaches to minimum contacts, and none received five votes.

Reasoning

Governing structure: The Fourteenth Amendment requires a forum connection created through the defendant's own purposeful conduct and a jurisdictional result consistent with fair play and substantial justice. *World-Wide Volkswagen* identifies the relationship among the defendant, forum, and litigation and supplies five fairness considerations: the defendant's burden, the forum's interest, the plaintiff's interest in effective relief, systemic efficiency, and the shared substantive policies of the sovereigns concerned.

Justice O'Connor's stream-of-commerce-plus approach - four votes: A substantial forum connection must arise from conduct purposefully directed toward that State. Placing a product into a distribution stream while aware that it may arrive in the forum establishes a distribution fact. Purposeful direction appears through additional conduct such as forum-specific product design, forum advertising, regular customer-advice channels, or use of a distributor obligated to serve the forum. Asahi's conduct contained none of those forum-directed features.

Justice Brennan's regular-flow approach - four votes: The stream of commerce is the regular and anticipated movement of products from manufacture through distribution to retail sale. A participant who knows that the final product is marketed in the forum obtains economic benefit from those sales and indirect benefit from the forum's commercial laws. Asahi's repeated, high-volume sales to Cheng Shin, combined with its knowledge of regular California sales, therefore established minimum contacts under this approach.

Justice Stevens's volume-value-hazard approach - three votes: Justice Stevens found the fairness holding sufficient to decide the case and left the minimum-contacts question open. He added that purposeful availment may depend on the volume, value, and hazardous character of the component. Deliveries exceeding 100,000 units annually over several years could amount to purposeful availment even for a standard product sold worldwide.

Fairness holding: The burden required Asahi to travel from Japan and defend in a foreign legal system. Cheng Shin was a Taiwanese corporation seeking indemnity based on transactions and shipments in Taiwan and Japan. It supplied no concrete reason why California offered a more effective forum than Taiwan or Japan. California's consumer-protection interest had largely been served through the original tort case, and its remaining interest in a foreign indemnity dispute was slight. The interests of Japan and Taiwan and the Federal Government's foreign-relations concerns called for caution.

Doctrinal status: Part II-B is a holding of the Court because eight Justices joined it. The competing minimum-contacts formulations are separate opinions. A court can resolve an Asahi-type case by identifying the governing approach in its jurisdiction or by showing the result under each formulation.

Exam rule: Identify the defendant's distribution conduct, knowledge, sales pattern, control, design, advertising, advice channels, and distributor mandate. Apply O'Connor's additional-conduct test, Brennan's regular-and-anticipated-flow test, and Stevens's volume-value-hazard factors. Then conduct the fairness analysis independently, giving international burdens and foreign sovereign interests their full weight.

2. J. McIntyre Machinery, Ltd. v. Nicaastro

564 U.S. 873 (2011). Supreme Court of the United States. No. 09-1343; argued January 11, 2011; decided June 27, 2011. Certiorari to the Supreme Court of New Jersey. Kennedy, J., announced the judgment; 4-Justice plurality, 2-Justice concurrence in the judgment, and 3-Justice dissent.

Parties

Petitioner / defendant: J. McIntyre Machinery, Ltd. (McIntyre UK), a corporation organized and operating in England that designed and manufactured metal-recycling machinery. **Respondent / plaintiff:** Robert Nicaastro, individually and as administrator of the estate of Roseanne Nicaastro, a New Jersey worker injured by a McIntyre Model 640 Shear.

Other entities below: McIntyre Machinery America, Ltd., the independent exclusive U.S. distributor, and Curcio Scrap Metal, Nicaastro's New Jersey employer and the machine's purchaser. McIntyre UK and the distributor were separately owned and controlled corporations.

Procedural History

In September 2003, Nicaastro filed a product-liability action in the Superior Court of New Jersey, Law Division, Bergen County, alleging defective design and inadequate warnings. McIntyre UK moved to dismiss for lack of personal jurisdiction. The trial court granted the motion, finding insufficient New Jersey contacts under both conventional minimum-contacts doctrine and the most expansive stream-of-commerce approach it considered.

In an unpublished first appeal, the New Jersey Superior Court, Appellate Division, reversed and permitted jurisdictional discovery addressing traditional minimum contacts, New Jersey's *Charles Gendler* stream-of-commerce rule, and Justice O'Connor's *Asahi* approach. After discovery, the trial court again dismissed. It found that the machine's arrival was McIntyre UK's sole New Jersey connection and that the evidence showed no expectation that its products would be purchased and used there.

The Appellate Division reversed a second time in a published opinion, 399 N.J. Super. 539 (App. Div. 2008). It found Justice O'Connor's stream-of-commerce-plus standard satisfied by the exclusive national distributorship, U.S. trade-show activity, a product designed for U.S. standards, and the sale produced by that distribution arrangement. It also relied on New Jersey's interest in workplace injuries and the location of witnesses and evidence.

The New Jersey Supreme Court granted certification, 196 N.J. 344 (2008), affirmed, and remanded for merits proceedings. 201 N.J. 48, 987 A.2d 575 (2010). Its rule subjected a foreign manufacturer to jurisdiction when the manufacturer knew or reasonably should have known that a nationwide distribution system might produce sales in any State and took no reasonable step to exclude New Jersey. The U.S. Supreme Court granted certiorari and reversed, 6-3.

Justice Kennedy wrote for four Justices. Justice Breyer, joined by Justice Alito, supplied the two additional votes for reversal through a narrower concurrence in the judgment. Justice Ginsburg, joined by Justices Sotomayor and Kagan, dissented. Because no rationale commanded five votes, the Court's judgment binds the parties while the separate opinions define the competing doctrinal paths. Justice Breyer's fact-specific rationale is commonly treated as the narrowest ground supporting the judgment.

Material Facts

On October 11, 2001, a three-ton Model 640 Shear severed four fingers from Nicaastro's right hand while he operated it at Curcio Scrap Metal in Saddle Brook, New Jersey. Nicaastro alleged that the shear lacked a safety guard and sought damages for medical expenses, lost wages, pain, and other injuries. Curcio had encountered the machine at a 1994 or 1995 Las Vegas scrap-recycling convention and purchased it from McIntyre America in 1995 for \$24,900. The distributor shipped it from Ohio to New Jersey.

McIntyre UK appointed McIntyre America as its exclusive U.S. distributor. The distributor agreed to promote and sell the machines throughout the United States. McIntyre UK officials attended annual industry conventions with the distributor in Chicago, Las Vegas, New Orleans, Orlando, San Diego, and San Francisco. They attended no New Jersey convention. The distributor shaped advertising and sales efforts according to McIntyre UK's direction and guidance when possible; correspondence also suggested that some inventory remained McIntyre UK's property until sale, functioning as consigned stock.

McIntyre UK held U.S. and European patents. Its product materials described worldwide use, incorporated hydraulic parts available through international outlets, and directed operators to U.S. safety standards. The company sought sales across the national U.S. market. The record established up to four New Jersey machines and suggested that the accident machine was the only confirmed New Jersey sale.

McIntyre UK maintained no New Jersey office, property, tax obligation, advertising, employees, or direct shipment. The independent distributor made the sale to Curcio. Jurisdictional discovery produced no list of New Jersey prospects, no New Jersey trade-show attendance, and no recurring flow of machines into the State.

Question Presented

May New Jersey exercise specific personal jurisdiction over a British manufacturer in a products-liability action arising from a machine sold and causing injury in New Jersey when the manufacturer cultivated the United States market through an independent national distributor and trade shows, while the record showed one confirmed New Jersey sale and no conduct directed specifically at New Jersey?

Holding

The Supreme Court reversed New Jersey's assertion of jurisdiction. Justice Breyer's narrower concurrence resolved the case on the jurisdictional record: one isolated sale, national marketing activity outside New Jersey, and the absence of a regular New Jersey sales flow or forum-specific sales effort failed to establish purposeful availment under existing precedents. The four-Justice plurality would require conduct showing an intention to invoke or benefit from New Jersey's sovereign authority. The three dissenters found jurisdiction because McIntyre UK deliberately developed the entire U.S. market through a distributor and its product reached and injured a New Jersey user through that arrangement.

Reasoning

Justice Kennedy's plurality - four votes: Personal jurisdiction concerns the lawful authority of a sovereign to bind a defendant. In an ordinary products case, authority rests on the defendant's purposeful availment of that sovereign's benefits and protections. The relevant sovereign was New Jersey because the suit was in state court. McIntyre UK's efforts toward the United States as a national market did not themselves establish submission to New Jersey's authority.

Plurality application: The distributor's nationwide mandate, conventions in other States, and up to four New Jersey machines showed a desire for U.S. sales. The evidence showed no New Jersey advertisement, employee visit, shipment, office, property, tax payment, or other act invoking New Jersey law. The plurality reserved whether Congress could authorize federal jurisdiction based on aggregate national contacts under the Fifth Amendment.

Justice Breyer's concurrence - two votes: Existing precedent resolved this limited record. *World-Wide Volkswagen* rejected jurisdiction based on one product's isolated arrival. The separate *Asahi* opinions identified a regular sales flow, additional forum-related conduct, or significant volume, value, and hazard as facts supporting jurisdiction. Nicastrò carried the burden of establishing jurisdiction and proved one confirmed sale, no regular New Jersey flow, and no specific New Jersey effort.

Questions left open by the concurrence: Justice Breyer declined to adopt the plurality's broader sovereignty and forum-targeting theory. He also rejected New Jersey's automatic nationwide-distribution rule. The record offered no occasion to decide jurisdiction for high-volume nationwide sales, direct internet sales, fulfillment through a large intermediary, geographically targeted digital advertising, or other modern distribution practices.

Justice Ginsburg's dissent - three votes: McIntyre UK retained an exclusive distributor to develop the whole United States, joined the distributor at trade shows, designed for U.S. use, and sought revenue wherever U.S. customers lived. New Jersey formed part of that deliberately cultivated market. The distributor brought the shear to New Jersey through the commercial system the manufacturer created, and the shear caused the forum injury underlying the suit.

Dissent's distinction from precedent: *World-Wide Volkswagen* involved a consumer who carried a locally sold car into Oklahoma, while the dealer and regional distributor had directed no conduct there. Here, a national distribution system produced the New Jersey sale. *Asahi* involved a component seller with limited control and a surviving foreign indemnity dispute; McIntyre UK actively sought U.S. customers and faced a local worker's product claim at the place of sale and injury.

Precedential rule: Six Justices agreed that this record failed to support jurisdiction. Five Justices rejected the plurality's broad reasoning: Justices Breyer and Alito withheld assent from it, and the three dissenters opposed it. For class and exam analysis, state the fractured vote, apply Justice Breyer's isolated-sale rationale as the narrow ground, and analyze unresolved distribution patterns under the competing opinions and other binding precedents.

Exam rule: Begin with the forum sovereign and identify every act attributable to the manufacturer. Trace how the product reached the forum. Quantify forum sales, distinguish an isolated occurrence from a regular flow, identify forum targeting or additional conduct, allocate the jurisdictional burden to the plaintiff, and state which opinion supplies each proposed rule.

3. Burger King Corp. v. Rudzewicz

471 U.S. 462 (1985). Supreme Court of the United States. No. 83-2097; argued January 8, 1985; decided May 20, 1985. Brennan, J., for a six-Justice majority; Stevens, J., joined by White, J., dissenting; Powell, J., took no part. Review of the U.S. Court of Appeals for the Eleventh Circuit.

Parties

Appellant / plaintiff: Burger King Corporation, a Florida corporation with principal offices in Miami that licensed and supervised restaurant franchises. **Appellee / defendant:** John Rudzewicz, a Michigan resident and senior partner in a Detroit accounting firm who supplied investment capital and personally assumed a twenty-year franchise obligation.

Other defendant below: Brian MacShara, a Michigan resident who proposed the venture and managed the restaurant. MacShara allowed his judgment to become final and did not participate in the Supreme Court appeal.

Procedural History

In May 1981, Burger King sued Rudzewicz and MacShara in the U.S. District Court for the Southern District of Florida. Federal subject-matter jurisdiction rested on diversity, 28 U.S.C. § 1332(a), and the federal trademark grant, § 1338(a). Burger King alleged breach through failure to send required payments to Miami and trademark infringement through continued operation after termination. It sought damages, an injunction, possession, fees, and costs. The defendants were served in Michigan under Federal Rule of Civil Procedure 4 and entered special appearances challenging personal jurisdiction.

After a hearing, the district court denied the jurisdictional motions. It applied Florida Statutes § 48.193(1)(g), which reaches a person who breaches a contract in Florida by failing to perform acts required there. The defendants answered, and they counterclaimed under the Michigan Franchise Investment Law. Following a three-day bench trial, the court reaffirmed jurisdiction, found breach and trademark infringement, rejected the counterclaim, entered \$228,875 in joint and several contract damages, ordered closure or surrender of the restaurant, and awarded fees and costs.

MacShara took no appeal. Rudzewicz compromised with Burger King and waived appellate review of the trademark-infringement finding and injunction. A divided Eleventh Circuit panel reversed the remaining judgment. *Burger King Corp. v. MacShara*, 724 F.2d 1505 (11th Cir. 1984). The parties had stipulated that Florida's long-arm statute reached Rudzewicz, so the panel decided federal due process and held Florida litigation fundamentally unfair. Rehearing en banc was denied, 729 F.2d 1468.

Burger King sought a direct Supreme Court appeal under 28 U.S.C. § 1254(2), a former provision allowing appeal when a court of appeals held a state statute unconstitutional. The Supreme Court dismissed that route because the Eleventh Circuit had accepted a statutory stipulation and had not clearly adjudged the Florida statute unconstitutional. Using 28 U.S.C. § 2103, the Court treated the jurisdictional statement as a certiorari petition, granted it, reversed 6-2, and remanded.

Material Facts

Burger King granted twenty-year trademark licenses, leased standardized facilities, and provided market research, advertising assistance, management training, accounting guidance, and operational systems. Franchisees paid a \$40,000 initial fee, monthly royalties and advertising charges, and rent tied partly to gross sales. They accepted detailed standards governing food, service, premises, staffing, insurance, accounting, default, and termination.

Burger King's structure divided functions between Miami headquarters and ten district offices. The agreements established the franchise relationship in Miami, selected Florida law, and required fees and notices to be sent to Miami. Headquarters set policy and controlled major disputes; the Michigan district office handled routine monitoring and relayed matters beyond its authority.

Rudzewicz and MacShara applied through the Birmingham, Michigan, office in autumn 1978. Miami approved a preliminary agreement in February 1979. MacShara attended management training in Miami, and the franchisees bought \$165,000 in equipment from Burger King's Miami division. During five months of negotiation, disputes arose over development fees, building design, rent, and personal liability. The franchisees negotiated through both Michigan and Miami, obtained limited concessions from Miami, and began operating in Drayton Plains in June 1979. Rudzewicz personally assumed obligations exceeding \$1 million over twenty years.

A late-1979 recession reduced patronage, and the franchisees fell behind on payments due in Miami. Headquarters sent default notices and conducted extended negotiations by telephone and mail, handled credit and refinancing discussions, imposed cost-cutting measures, terminated the franchise, and ordered surrender of the premises. Rudzewicz and MacShara continued operating under Burger King's marks. Rudzewicz maintained his residence, restaurant, staff, and ordinary business operations in Michigan and personally never visited Florida.

Question Presented

Does Florida's exercise of specific personal jurisdiction satisfy the Fourteenth Amendment when a Michigan franchisee formed a carefully structured twenty-year relationship with a Florida corporation, accepted continuing supervision and obligations centered in Miami, sent payments and communications there, and allegedly caused forum-related injury through breach, while conducting the restaurant's physical operations in Michigan?

Holding

Yes. Rudzewicz deliberately created a substantial and continuing relationship with Burger King's Miami headquarters, and Burger King's claims arose from that relationship. The negotiations, contemplated future consequences, contract terms, and actual course of dealing established purposeful Florida contacts. Those contacts made jurisdiction presumptively reasonable, and Rudzewicz presented no compelling fairness showing sufficient to overcome that conclusion. The Court reversed the Eleventh Circuit and remanded.

Reasoning

Constitutional function: Personal jurisdiction protects an individual liberty interest by ensuring fair warning about the sovereigns capable of entering binding judgments. That warning lets a potential defendant structure primary conduct, insure, price risk, choose contractual protections, and anticipate where suit may occur. The right is waivable through consent and other legal arrangements.

Stage one - purposeful minimum contacts and relatedness: Specific jurisdiction requires forum contacts created by the defendant's own purposeful conduct and a claim arising out of or relating to those contacts. Purposeful availment identifies deliberate affiliation that invokes the forum's benefits and protections. Mail, telephone, and continuing interstate obligations can create that affiliation because modern commercial activity routinely operates across state lines.

Contract analysis: The existence of an interstate contract begins the inquiry. Courts evaluate prior negotiations, contemplated future consequences, contract terms, and the parties' actual course of dealing. These features reveal the relationship the defendant chose to create. A contract often records earlier negotiations and organizes future performance, so its jurisdictional significance comes from the full commercial relationship.

Application to Rudzewicz: He reached from Michigan to obtain a long-term affiliation with a Florida enterprise, negotiated contested terms with Miami, accepted a twenty-year regulated relationship, promised payments and notices to Miami, communicated repeatedly with headquarters, and depended on Miami for major decisions. The breach claims arose directly from payments due there and continuing use of a relationship governed from there. These were substantial, deliberate contacts.

Choice of law: The Florida choice-of-law clause selected the governing substantive law and stated that the agreement became valid upon acceptance in Miami. It did not select an exclusive litigation forum and could not create jurisdiction by itself. Combined with the long-term relationship and course of dealing, it reinforced Rudzewicz's deliberate affiliation with Florida and notice that Florida law would protect and regulate the relationship.

Stage two - fair play and substantial justice: After purposeful contacts are established, courts consider the defendant's litigation burden, forum interest, plaintiff's convenient and effective relief, interstate efficiency, and shared substantive policies. Strong fairness considerations can make jurisdiction reasonable on a comparatively modest contact showing. A defendant with purposeful contacts must present a compelling case that the factors make jurisdiction unconstitutional.

Fairness application: Florida had a legitimate interest in claims concerning obligations deliberately centered there. Michigan's franchise policy could be accommodated through choice-of-law rules. The record supplied no concrete witness or evidence burden of constitutional magnitude; ordinary inconvenience could be addressed through transfer under 28 U.S.C. § 1404(a). Disparity in resources alone did not defeat the consequences of Rudzewicz's purposeful commercial affiliation.

Trial findings and Rule 52(a): The district court found after trial that Burger King made no misrepresentations, that the franchisees were experienced and sophisticated, and that they acted free of economic duress imposed by Burger King. Federal Rule of Civil Procedure 52(a)'s clear-error standard governed those findings. The appellate record supplied no basis for a definite and firm conviction that the trial judge had erred.

Justice Stevens's dissent: The dissent emphasized Rudzewicz's Michigan residence, restaurant, employees, taxes, customers, face-to-face dealings, and operational supervision. It viewed the Michigan office as the practical center of the relationship and found the distant Miami provisions insufficient to give a small franchisee fair warning of Florida litigation. The dissent would have affirmed the Eleventh Circuit's fairness assessment.

Exam rule: For a contract dispute, identify who initiated the interstate relationship; map negotiations, expected duration, future obligations, payment destination, governing law, decisionmaking authority, and course of dealing; connect the claim to those contacts; then apply all five fairness factors. Once purposeful contacts exist, specify the compelling hardship or policy conflict the defendant offers to defeat jurisdiction.

PART II - DOCTRINAL SYNTHESIS

1. Historical Line of Doctrine

Pennoyer organized adjudicatory power around territorial presence, service, consent, and property. *International Shoe* made the defendant's forum contacts and the fairness of adjudication the governing framework for absent defendants. *Hanson* required an act by which the defendant purposefully avails itself of the forum. *World-Wide Volkswagen* tied foreseeability to conduct that makes forum litigation reasonably anticipatable and described products deliberately delivered into multistate markets. *Burger King* systematized purposeful contacts, claim connection, and fairness. *Asahi* divided the Court over distribution networks, and *Nicastro* preserved that division while deciding an isolated-sale record.

2. The Two-Stage Specific-Jurisdiction Structure

Stage one: identify forum contacts created by the defendant through purposeful affiliation, direction, or availment, then connect the claim to those contacts. **Stage two:** evaluate fair play and substantial justice through the defendant's burden, the forum's interest, the plaintiff's effective-relief interest, systemic efficiency, and shared substantive policies. *Burger King* states the structure. *Asahi* shows that extreme international burdens and minimal forum interests can defeat jurisdiction. *Nicastro* turns on the adequacy of the forum-contact showing.

3. Contracts and Distribution Networks Use the Same Constitutional Principle

Purposeful availment asks whether the defendant created the forum affiliation that produced the litigation. In *Burger King*, the defendant chose a continuing relationship centered in Florida. In distribution cases, the disputed question is what manufacturer conduct connects it to the particular State: forum targeting, knowledge of a regular sales flow, sales volume and value, distributor instructions, product adaptation, or a combination of those facts.

4. Exact Opinion Map

Asahi: eight Justices joined the fairness holding; four supported O'Connor's stream-of-commerce-plus rule; four supported Brennan's regular-flow rule; three supported Stevens's volume-value-hazard inquiry. **Nicastro:** four supported Kennedy's state-sovereignty and forum-targeting rationale; two concurred only in the isolated-sale result; three supported national-market targeting as sufficient. **Burger King:** six joined the majority, two dissented, and one took no part.

5. The Controlling Lesson of the Fractured Cases

Asahi establishes its fairness result and leaves competing minimum-contacts methods. *Nicastro* establishes that one confirmed sale plus general national marketing on its record did not support jurisdiction. Justice Breyer's concurrence supplies the narrow ground: the plaintiff showed no regular forum flow and no additional forum-directed conduct. The plurality's broader demand for submission to a particular State received four votes and remains persuasive reasoning rather than a majority rule.

6. Foreseeability Stated Precisely

Jurisdictional foreseeability concerns whether the defendant's own conduct and forum connection make suit there reasonably anticipatable. *Burger King* locates that predictability in a deliberately created Florida relationship. Brennan's *Asahi* opinion locates it in known, regular forum sales. O'Connor locates it in forum-directed additional conduct. Breyer's *Nicastro* concurrence finds one isolated sale inadequate under either line.

7. International Defendants

A state court measures the foreign defendant's contacts with that State under the Fourteenth Amendment. *Asahi* and the *Nicastro* plurality reserve whether Congress may authorize a federal court to use aggregate national contacts under the Fifth Amendment. International fairness also gives weight to the burden of a foreign legal system, other nations' substantive and procedural interests, and the Federal Government's foreign-relations interest.

8. Fast Class and Exam Sequence

Name the forum and the sovereign exercising power. Identify the precise claim and its connection to the forum. List only contacts created by the defendant. Classify those contacts as deliberate affiliation, forum-directed conduct, regular distribution, or isolated product arrival. State each governing opinion's vote count. Apply the five fairness factors with record facts. Conclude separately on purposeful contacts, relatedness, and reasonableness.

SOURCE NOTES

Full Supreme Court opinions: *Asahi Metal Industry Co. v. Superior Court*, 480 U.S. 102 (1987); *J. McIntyre Machinery, Ltd. v. Nicastro*, 564 U.S. 873 (2011); *Burger King Corp. v. Rudzewicz*, 471 U.S. 462 (1985). The briefs use the full opinions, separate opinions, syllabi, and reported procedural citations.

State-court record for Nicastro: *Nicastro v. McIntyre Machinery America, Ltd.*, 201 N.J. 48, 987 A.2d 575 (2010). The state opinion supplies the two trial-court dismissals, two Appellate Division reversals, jurisdictional discovery, lower-court factual findings, and New Jersey's stream-of-commerce rule.

Reading note: Vote counts are stated at the level of each proposition. A unanimous judgment does not convert a four-Justice rationale into a holding of the Court. Each brief therefore identifies the judgment, the portions joined by a majority, and the separate tests advanced by fewer than five Justices.